At bottom, the dissent hopes to revive that old-time devotion to legislative history. See, *e.g.*, *Church of Holy Trinity* v. *United States*, 143 U. S. 457, 464–465 (1892). Instead of winning converts, however, the dissent illustrates why statutory interpretation must focus on the text—or, to borrow from Justice Robert Jackson, why interpretation must be driven by "analysis of the statute" rather than "psychoanalysis of Congress." *United States* v. *Public Util. Comm'n of Cal.*, 345 U. S. 295, 319 (1953) (concurring opinion).

* * *

The judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE KAGAN, dissenting.

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My views about the proper use of legislative history in statutory interpretation fall someplace in between the majority's and the principal dissent's. The one-sentence version is: Reliance on legislative history may be appropriate when statutory text in context remains, after careful review, stubbornly ambiguous. I do not find Section 47(b) to exhibit such a lack of clarity. For the reasons JUSTICE JACKSON gives in Parts I and II of her dissenting opinion, the text, structure, and statutory history of Section 47(b) support recognition of a private right of action. I therefore gladly join those parts of JUSTICE JACKSON's dissent, while abstaining from the opinions' further debate about the meaning of the House and Senate Reports.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR joins, and with whom JUSTICE KAGAN joins as to Parts I and II, dissenting.

I agree with the Court that "Congress, not the Judiciary, decides who may enforce the law." *Ante*, at 611. It is for that

very reason that I think courts should consult all reliable indicia of Congress's intent when interpreting its statutes. Had the Court done so here, it would have acknowledged that Congress amended Section 47(b) of the Investment Company Act in reliance on a prior decision of ours that had interpreted the original text to contain an implied private right of action for rescission. It would also have wrestled with legislative Committee Reports that unequivocally expressed Congress's "wish" that the statute continue to be interpreted to allow private suits, notwithstanding this Court's increasing penchant for refusing to recognize implied rights of action.

The majority today misreads the text of Section 47(b). It also deftly sidesteps compelling evidence of Congress's actual intent and opts instead to draw inferences about Congress's objectives. In so doing, the majority assumes for itself the prerogative to foreclose contract-rescission suits that Congress intended to authorize. Because the Court's proper role is to give effect to the will of the people, not supplant it, I respectfully dissent.

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I

A

In 1940, Congress made a post-Great Depression push to "eliminate certain abuses in the securities industry." *SEC* v. *Capital Gains Research Bureau, Inc.*, 375 U. S. 180, 186 (1963). As part of this effort, it simultaneously enacted the Investment Company Act (ICA) and the Investment Advisers Act (IAA).

As relevant to the ICA, Congress found that "the national public interest and the interest of investors are adversely affected" when, among other things, "investment companies issue securities containing inequitable or discriminatory provisions." 15 U. S. C. §80a–1(b)(3). Accordingly, Congress included a rule of construction that the ICA "shall be interpreted" to "mitigate and, so far as is feasible, to eliminate

the conditions enumerated in [the statute] which adversely affect the national public interest and the interest of investors." §80a–1(b). One of those conditions was that "every share of stock hereafter issued by a registered management company . . . shall be a voting stock and have equal voting rights with every other outstanding voting stock." §80a–18(i).[1]

Consistent with Congress's anti-abuse purpose, the ICA and the IAA contained a stick: "Every contract made in violation of any provision of [the ICA or the IAA], and every contract heretofore or hereafter made, the performance of which involves the violation of . . . any provision of" the statutes "*shall be void*." §47(b), 54 Stat. 846 (ICA) (emphasis added); §215(b), *id.*, at 856 (IAA).

These provisions mirrored Section 29(b) of the Securities Exchange Act, which Congress had enacted just six years before. See 48 Stat. 903. Section 29(b), in turn, "drew from" States' "enactment of their own 'blue-sky' statutes," which were widely understood by both judges and scholars to create a private right to rescission. *Aaron* v. *SEC*, 446 U. S. 680, 711 (1980) (Blackmun, J., concurring in part and dissenting in part); see Brief for Securities-Law Scholars et al. as *Amici Curiae* 6–8 (collecting scholarship and state-court cases). Thus, in a 1970 case called *Mills* v. *Electric Auto-Lite Co.*, 396 U. S. 375, the Court thought it "eminently sensible" that the "lower federal courts ha[d] read §29(b), which has counterparts in . . . the [ICA] and the [IAA]," as giving "the victim" the "right to rescind" the contract. *Id.*, at 387–388.

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We confirmed that view nine years later in another case called *Transamerica Mortgage Advisors, Inc.* v. *Lewis*, 444 U. S. 11 (1979) (*TAMA*). *TAMA* held that Section 215 of the IAA "fairly implies a right to specific and limited relief in a federal court"—namely, a private legal action to seek rescission of an unlawful contract. *Id.*, at 18. Declining to place

[1] Respondents' claim for rescission is premised on the allegation that petitioners violated this condition.

"emphasis upon the desirability of implying private rights of action in order to provide remedies thought to effectuate the purposes of a given statute," *TAMA* focused exclusively on "whether Congress intended to create the private remedy asserted." *Id.*, at 15–16 (citing, *inter alia*, *Touche Ross & Co.* v. *Redington*, 442 U. S. 560, 568 (1979)).

With respect to the "shall be void" language in Section 215, the *TAMA* Court concluded that the text of the statute was clear. See 444 U. S., at 18–19. First, we explained, the "language of" Section 215, along with that of a related provision that "broadly proscribe[d] fraudulent practices by investment advisers," ran "to [the] benefit [of] the clients of investment advisers, and . . . the parties to advisory contracts." *Id.*, at 16–17. Second, "[b]y declaring certain contracts void, § 215 by its terms necessarily contemplate[d] that the issue of voidness under its criteria may be litigated somewhere." *Id.*, at 18. To be sure, Section 215 voidness might be "raised defensively." *Ibid.* "But the legal consequences of voidness are typically not so limited." *Ibid.* As the Court had recognized in *Mills*, and as federal and state courts have acknowledged for years, "[a] person with the power to void a contract ordinarily may resort to a court to have the contract rescinded." *TAMA*, 444 U. S., at 18; see *id.*, at 19 (citing *Mills*, 396 U. S., at 388). So, we reasoned, "when Congress declared in § 215 that certain contracts are void, it intended that the customary legal incidents of voidness would follow, including the availability of a suit for rescission." 444 U. S., at 19.

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Notably, all nine Justices agreed with the part of *TAMA* that held a private right of action for rescission was implicit in Section 215.[2] Four Justices disagreed with a later part of

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[2] Even Justice Powell, whose well-known criticisms of the Court's implied-rights jurisprudence would help shape the Court's more recent decisions in this area of law, viewed the rescission-focused part of *TAMA* "as compatible with [his] dissent in *Cannon* v. *University of Chicago*, 441 U. S. 677, 730 (1979)." *TAMA*, 444 U. S., at 25 (concurring opinion).

the opinion, which held that a different section of the IAA did not imply a "private right of action for a *monetary award*." *Id.*, at 20 (emphasis added); see *id.*, at 29–33 (White, J., dissenting). In reaching that conclusion, the majority observed that Congress had chosen to "*expressly* authoriz[e] private suits for damages in prescribed circumstances" in "each of the securities laws that preceded the [IAA]," including the ICA. *Id.*, at 20 (emphasis added). "'Obviously, then, when Congress wished to provide a private damages remedy, it knew how to do so and did so expressly.'" *Id.*, at 21 (quoting *Touche Ross*, 442 U. S., at 572). The fact that it did not make any such express statement in the IAA, we held, showed "that Congress did not intend to authorize a cause of action for anything beyond limited equitable relief." *TAMA*, 444 U. S., at 22.

Our decision in *TAMA* necessarily controlled the question whether Section 47(b) of the ICA implied a private right of action for rescission, since Section 47(b) was identical to—and enacted simultaneously with—Section 215 of the IAA. See *Smith* v. *City of Jackson*, 544 U. S. 228, 233 (2005) (opinion of Stevens, J.) ("[W]hen Congress uses the same language in two statutes having similar purposes, particularly when one is enacted shortly after the other, it is appropriate to presume that Congress intended that text to have the same meaning in both statutes").

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So, as of 1979, it was indisputable that Section 47(b) of the ICA contained a private right of action for rescission—on that, even the majority agrees. See *ante*, at 619.[3]

[3] The majority does equivocate, though, offering as a throwaway that "*TAMA* does not get Saba far" because it "blesses only a 'limited private remedy . . . to void an *investment advisers* contract.'" *Ante*, at 620 (quoting *TAMA*, 444 U. S., at 24). This distinction appears nowhere in the parties' briefs and does not amount to anything. *TAMA* referred to "investment advisers contract[s]" because the case was about the IAA—short for the "*Investment Advisers* Act"—not because there is something special about the contracts of investment advisers as compared to other investment-related contracts.

B

Today's dispute has arisen because, one year after *TAMA*, Congress amended Section 47(b) and revised its "shall be void" language. The new Section 47(b) reads:

> "(1) A contract that is made, or whose performance involves, a violation of [the ICA], or of any rule, regulation, or order thereunder, is unenforceable by either party . . . unless a court finds that under the circumstances enforcement would produce a more equitable result than nonenforcement and would not be inconsistent with the purposes of [the ICA].
>
> "(2) To the extent that a contract described in paragraph (1) has been performed, a court may not deny rescission at the instance of any party unless such court finds that under the circumstances the denial of rescission would produce a more equitable result than its grant and would not be inconsistent with the purposes of [the ICA]." 15 U. S. C. § 80a–46(b).

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Unlike in the original version of the statute, the amended Section 47(b)'s two paragraphs pertain to two different scenarios. In the first, the contract at issue has not yet been performed, but the ICA violation renders it "unenforceable by either party." § 80a–46(b)(1). In the second (the one relevant here), the problematic contract "has been performed," but "a court may not deny rescission at the instance of any party" unless the equities counsel otherwise. § 80a–46(b)(2).

In their respective Reports, the relevant House and Senate Committees expressed "that private rights of action under [the amendments] should be implied to and in its enforcement to the same extent that such causes of action [were] implied under the [original statute]." S. Rep. No. 96–958, p. 14 (1980); see also H. R. Rep. No. 96–1341, p. 29 (1980). Both Committees explained that, "[w]ith a relatively small staff charged with administrative responsibility for policing

potentially unlawful securities-related activities, the [Securities and Exchange] Commission [could not] be expected to bring actions against even a large portion of those engaged in schemes, devices and activities that are prohibited by federal law." S. Rep. No. 96–958, at 14; see also H. R. Rep. No. 96–1341, at 28. Private actions would fill that gap.

II

In determining whether statutes create private rights of action, as in interpreting statutes generally, legal context can serve a useful purpose in clarifying the statutory text. See *Alexander* v. *Sandoval*, 532 U. S. 275, 288 (2001). "Statutory history," in particular, "is an important part of [the] context" that supports a statute's text—"the water in which [the words] swim." *United States* v. *Hansen*, 599 U. S. 762, 775 (2023). And we generally "presum[e]" Congress is aware of our prior "judicial interpretation of a statute" when it takes up the pen to reenact or amend it. *Lorillard* v. *Pons*, 434 U. S. 575, 580–581 (1978).

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Therefore, while the majority proceeds as if Section 47(b) arrived in the U. S. Code vacuum-sealed and devoid of any background, the correct interpretation of Section 47(b) must account for *TAMA*.[4] Viewed in context, the critical question is whether Congress intended to reject *TAMA*'s holding when it undertook to amend the statute after that case was decided.

To be sure, the fact that Congress changed the statute provides an opening for the argument that Section 47(b) is different now. *Ante*, at 619. But to its credit, for all its

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[4] The majority views this observation as an "accusation" and calls it "perplexing" because the Court's opinion does address *TAMA*. *Ante*, at 619, n. 4. But the majority's consideration of statutory history is clearly an afterthought; *TAMA* plays no role in its affirmative interpretation of Section 47(b) and is discussed only in the course of responding to Saba's counterarguments, *after* the majority's own statutory analysis has concluded. See *ante*, at 613–618.

emphasis on the "substantive" nature of Congress's "renovation[s]," the majority never goes so far as to say that Congress rejected *TAMA*. *Ante*, at 620. Nothing in the text or structure of the amended Section 47(b) shows that Congress did so.

A

Start with the text. Section 47(b) was not crafted on a blank slate—Congress built on its prior work and this Court's relevant interpretations. Read in context, the text of Section 47(b) confirms that Congress expected the courts to keep with *TAMA*.

The majority is quick to emphasize that Congress removed key language from Section 47(b)—*i. e.*, the words "shall be void"—and infers from this that the amendment was meant to excise the private right of action *TAMA* had recognized. See *ante*, at 619. But our analysis in *TAMA* did not rely exclusively on those specific words. Moreover, the majority's focus on what Congress *took out* of the statute diverts attention from what matters just as much (if not more) for the interpretive exercise here: the language Congress *added*. The words Congress inserted into Section 47(b)—"a court may not deny rescission at the instance of any party"—more than make up for the ones that it removed.

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Most notably, Congress inserted "rescission." Of all the words that it could have chosen, Congress went with the very one that had appeared the year before in the *TAMA* opinion. See *TAMA*, 444 U. S., at 19. Congress was armed with *TAMA* at the time it amended the statute, and it quite obviously chose to say the (previously) quiet part out loud. It struck "shall be void" and inserted what that meant (as we had explained in *TAMA*): "rescission."

Next, Congress authorized rescission "at the instance of any party." The mention of the "party" raising rescission represents another substantial upgrade from the old Section 47(b), and one that also sets the statute apart from others that we've said fall short of "'rights-creating' language."

Sandoval, 532 U. S., at 288; see, *e. g.*, *Thompson* v. *Thompson*, 484 U. S. 174, 177, 183 (1988) (no implied private right of action in 28 U. S. C. § 1738A, a statute designed to " 'avoid jurisdictional competition and conflict between State courts' " and "addressed entirely to States and state courts"). And for all the majority's protestations that Section 47(b) is a "mandate directed to . . . courts, rather than a provision that confers a right on a specified class of persons," *ante*, at 615 (some alterations and internal quotation marks omitted), it fails to account for the fact that we found an implied private right of action in *TAMA* based on language that contained *no* reference to the party raising rescission.

What is more, the majority's insistence that the provision is a rule of decision for courts, not rights-creating language for parties, *ante*, at 615, simply does not track with the ordinary meaning of the phrase "at the instance of." See 7 Oxford English Dictionary 1040 (2d ed. 1989) (defining "at the instance of" as "at the solicitation, suit, instigation, or suggestion of"); Webster's New International Dictionary 1287 (2d ed. 1954) (defining "instance" as "[t]he institution and prosecution of a suit"). Also, rescission is an affirmative right. "[A] party believing himself entitled to have the contract abrogated and to have himself restored to his former position *may invoke the aid of a court of equity* and obtain a decree for the rescission of the contract and, in proper cases, for the cancellation of the instrument evidencing it." 1 H. Black, Rescission of Contracts and Cancellation of Written Instruments § 1, p. 4 (1916) (Black) (emphasis added); cf. *TAMA*, 444 U. S., at 19, n. 8 (declining to adopt the "anomalous construction" that "Congress intended that claims under § 215 would be raised only in state court," thereby "remit[ting] the litigation of a federal right to the state courts," since rescission had customarily been recognized as a cause of action).[5]

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[5] The majority points out that "[e]lsewhere, [Black's] treatise explains that a party may obtain equitable rescission only if 'he is able to show the existence of some well-recognized title to equitable relief, such as fraud,

Then there's the capaciousness of the phrase "any party." "Party" could refer to a party to a contract. See Brief for Respondents 2. Or it could refer to a party to a litigation. See Brief for Petitioners 2. Either way, "any" ensures that, under the statute, rescission can be raised affirmatively or defensively, whether by the shareholder, the investment company, the plaintiff, or the defendant. The majority's conclusion that the phrase "any party" contemplates only those rescission claims raised defensively is not only divorced from the text but also illogical given the circumstances. Once a contract "has been performed"—which is the universe in which Section 47(b)(2) operates—what is left to sue about, such that a party with a rescission claim would be in a position to raise it as a defense? By that point, an aggrieved party is most likely to seek rescission affirmatively in order to undo what has already been done.

Section 47(b)'s internal structure provides further support for this reasoning. Whereas Section 47(b)(2) contemplates a legal action to rescind the violative contract *after* it "has been performed," Section 47(b)(1)'s language applies *pre*-performance, warning parties that a contract in violation of the ICA "is unenforceable." Section 47(b)'s paragraphs therefore represent two sides of the same "shall be void" coin, spelled out in more detail than in the original Section 47(b): Neither party may enforce a contract that violates the ICA, but "any party" may seek to rescind such a contract if it has already been performed.

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B

That leaves the broader statutory structure, which the majority says supports its view that Congress did not mean to imply a private right of action. *Ante*, at 616–618. The structure of the ICA cannot bear that weight. True, the Securi-

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mistake, or duress.'" *Ante*, at 616, n. 2 (quoting Black §14). Fair enough. But a suit for rescission based on "fraud, mistake, or duress" is still an affirmative suit for rescission. And the question here is whether Congress intended for a party to be able to file a suit for rescission.

ties and Exchange Commission "bears primary responsibility for ensuring compliance with the ICA." *Ante*, at 616. But unlike the statute at issue in *Sandoval*, which itself "empower[ed] agencies to enforce [the relevant] regulations," Section 47(b) does not contain any remedial scheme specific to its own "substantive rule." 532 U. S., at 289–290. Instead, Section 47(b) uses the phrase "any party"—an odd phrase to denote only the Commission. See *Oxford Univ. Bank* v. *Lansuppe Feeder, LLC*, 933 F. 3d 99, 105–106 (CA2 2019).

The majority also points to the ICA's two express private rights of action, which, it says, show that Congress "'knew how to'" provide a private remedy expressly and chose not to do so in Section 47(b). See *ante*, at 617 (quoting *Touche Ross*, 442 U. S., at 572). But the express-authorization language upon which the majority hangs this hat concerns private actions principally or exclusively *for damages*, not rescission. See 15 U. S. C. §§ 80a–35(b), 80a–29(h). And we know from *TAMA* that those two types of relief are not the same. So, one could just as easily infer that, when Congress wanted money damages to flow to private parties in this context, it thought it was necessary to say so. Indeed, in *TAMA*, we cited the two express provisions as a point against finding an implied private right of action for *damages*, but did not invoke them at all in our discussion of whether the IAA created an implied private right of action for *rescission*. See 444 U. S., at 20, and n. 10.

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The majority provides no persuasive basis for rejecting that reasoning here. One year after *TAMA*, Congress surely proceeded to amend the ICA feeling safe in the knowledge that a private right of action for rescission had already been established. Congress likely understood—because we had said—that it had to operate expressly only if it wished to extend that right of action to encompass damages as well.

III

Thus far I have rested my analysis solely on the text, structure, and statutory history of Section 47(b). The fact that the majority nevertheless focuses almost all of its fire on my additional consideration of legislative history should alert readers to the potency of that material in this case. Viewed in conjunction with text, structure, and statutory history, legislative history can be a relevant and reliable indicium of Congress's intent.

A

Rather than guess about what Congress intended Section 47(b) to mean based on what "changed language typically indicates," *ante*, at 620, consider the legislative records in which the Committees spearheading the 1980 amendments explicitly said what they intended. As noted earlier, the relevant House and Senate Committees expressed their "wishes to make clear that private rights of action under [the amendments] should be implied to and in its enforcement to the same extent that such causes of action [were] implied under the [ICA]." S. Rep. No. 96–958, at 14; see also H. R. Rep. No. 96–1341, at 29. I have seldom seen a clearer expression of legislative intent in a congressional record.

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The Committees also anticipated and responded directly to the majority's headlining structural argument. The majority reasons that Congress could not have meant to include an implied private right of action for rescission because "the Securities and Exchange Commission bears primary responsibility for ensuring compliance with the ICA." *Ante*, at 616. But the Committee Reports explained that, "[w]ith a relatively small staff charged with administrative responsibility for policing potentially unlawful securities-related activities, the Commission [could not] be expected to bring actions against even a large portion of those engaged in schemes, devices and activities that are prohibited by federal law."

S. Rep. No. 96–958, at 14; H. R. Rep. No. 96–1341, at 28. So, "private lawsuits serve as an added deterrent to conduct made unlawful by Congress, without the necessity of governmental involvement." *Ibid.*; see also S. Rep. No. 96–958, at 14 (describing private suits as "a necessary adjunct to the Commission's enforcement efforts").

The House Committee, for its part, seemed to view the private right of action we acknowledged in *TAMA* as the bare minimum, not a dispensable option. Its Report noted that, although private suits "significantly assist the congressional goal of promoting fair corporate suffrage," "in recent years, the Supreme Court [had] turned its focus toward a strict construction of statutory language and expressed intent." H. R. Rep. No. 96–1341, at 28. It then cited *TAMA* as an example of that development—*i. e.*, as illustrative of the Court's refusal to "imply a private cause of action for damages" even on behalf of plaintiffs who "offered to show both that the law was violated and that they suffered monetary loss as a result." H. R. Rep. No. 96–1341, at 28–29, n. 6. The next sentence provided the Committee's reaction: "The Committee wishes to make plain that *it expects the courts to imply private rights of action under this legislation*." *Id.*, at 29 (emphasis added). Far from rejecting or overturning *TAMA*'s recognition of a private right of action for rescission, the House Committee expressly recognized the rescission right and set its sights on the next goal: ensuring that the courts recognized an implied private right of action for damages.

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We have inferred legislative adoption of our holdings from far less. In *Evans* v. *United States*, 504 U. S. 255 (1992), for example, we said that the "silence of the body that is empowered to give us a 'contrary direction' if it does not want the [prevailing judicial interpretation] to survive is consistent with an application of the normal presumption" that Congress has accepted that interpretation. *Id.*, at 269. In the case before us now, there is something much better than "si-

lence": In addition to the text and structure of the amended statute itself, we have legislative history containing an explicit statement from Congress imploring "courts to imply private rights of action under" the amended Section 47(b), and a specific reference to *TAMA* as an example of a judicial decision that found one fewer implied right than Congress wanted. H. R. Rep. No. 96–1341, at 28–29, and n. 6; see also S. Rep. No. 96–958, at 14.

Still, the majority insists that legislative history is irrelevant to properly ascertaining Congress's intent. Its efforts to neutralize the pellucid statements in this legislative record include characterizing them as relating to "implying causes of action in the 'federal securities laws' generally." *Ante*, at 622. But the Reports say what they say. The Committees explained that, when it amended the statute we are interpreting today, Congress wanted to preserve "to the same extent" the implied private right of action that the Court had recognized in the ICA. S. Rep. No. 96–958, at 14.[6]

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Unable to explain this compelling evidence of Congress's intent, the majority pivots to arguing that I "ignor[e]" "[t]he most relevant portions" of the legislative history. *Ante*, at 621–622. (I welcome the majority's close reading of the Reports.) According to the majority, the only parts of the Reports that matter are the ones specifically dedicated to Section 47(b). *Ibid.* Those sections say that the new Section 47(b) "is designed to provide clearer statutory guidance in inter-

[6] It is true that "the House Report expresses the Committee's expectation that '[i]n appropriate instances, for example, breaches of fiduciary duty involving personal misconduct should be remedied under *Section 36(a)* of the Investment Company Act,'" rather than Section 47(b). *Ante*, at 622 (quoting H. R. Rep. No. 96–1341, at 29). The majority extrapolates from this that the House Report is irrelevant to Section 47(b). But the majority misses the point. The House Committee was providing, yes, an "example"—it referenced Section 36(a) as merely illustrative of the kinds of circumstances in which courts should allow private actions under the ICA. *Id.*, at 29.

preting [the] equitable rescission remedy." H. R. Rep. No. 96–1341, at 27; see S. Rep. No. 96–958, at 10. In the majority's view, this section—which "nowhere mentions a private right of action"—instead "confirm[s] the obvious point that rescission is a *remedy*." *Ante*, at 622 (emphasis added). But the majority does not, and cannot, explain why the fact that the Report references a "remedy" matters in the context of today's dispute. See n. 5, *supra*. What is relevant for interpreting Section 47(b) is whether a plaintiff *may bring suit* to seek rescission (however rescission is characterized)—and the answer to that question is clearly yes. See Black § 1, p. 4 ("[A] party . . . may invoke the aid of a court of equity and obtain a decree for the rescission of the contract").

The majority's favorite parts of the Reports thus only serve to confirm that Congress was, in fact, thinking about rescission when it amended Section 47(b). And what did Congress know about rescission as relevant to Section 47(b) in 1980? That this Court had found in its language an implied private right of action to seek rescission. See *TAMA*, 444 U. S., at 18–19; H. R. Rep. No. 96–1341, at 28–29, n. 6 (citing *TAMA*).

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So, "[o]ne wonders," *ante*, at 623, indeed: If Congress had *not* wished for a private right of rescission to be made available and thus wanted to *undo* our holding in *TAMA*, why did it not say so in the text of the statute or mention that anywhere in the legislative history?

B

For those who remain unconvinced, I posit that their doubts likely stem from a categorical unwillingness to accept the help of legislative history when interpreting statutes. That is certainly the case for the majority. See *ante*, at 620–621, 624. But if, as the majority says, it is "mission impossible" to "divin[e] how Congress would have wanted courts to resolve the question presented in this case" with the help of legislative history, *ante*, at 621, a juridical cast of thousands—

including many of our illustrious predecessors—has accepted the challenge. Legislative history is a traditional tool courts consult when attempting to ascertain Congress's intent regarding ambiguous statutory text (such as, as relevant here, disputes concerning implied private rights of action). This is a worthy and necessary effort because it prevents the preferences of judges from supplanting the will of the people.[7]

1

Using legislative history as a tool of statutory interpretation is a time-honored tradition. Indeed, the Judiciary's collective "old-time devotion" to the legislative history hymnal, *ante*, at 624, held steady for more than a century—until the late 1980s, when the Court suddenly began to sing a different tune. See S. Breyer, On the Uses of Legislative History in Interpreting Statutes, 65 S. Cal. L. Rev. 845, 846 (1992) (explaining that the Supreme Court used to rely on legislative history so routinely that a discussion of it appeared "in almost every statutory case [the Court] decided in 1981" and the shift away from legislative history did not begin in earnest until 1989); see also P. Wald, Some Observations on the Use of Legislative History in the 1981 Supreme Court Term, 68 Iowa L. Rev. 195, 197 (1983) (explaining that, in the flurry of legislative activity during the New Deal era and "through the next fifty years, resort to legislative history became pervasive").

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It is, in fact, the majority's castigation of legislative history as something verging on extralegal (see, *e. g.*, *ante*, at 624) that is the historical outlier. And that consternation is especially odd coming from a Court that eagerly delves into the transcripts of the ratification debates, the Framers' pri-

[7] A side note: The majority appears to have little problem appreciating the relevance of statutory history, see *ante*, at 619, n. 4, yet balks at the mention of its companion, legislative history. My point here is that *both* kinds of history are valuable to the interpretive task, and neither should be prohibited. The majority arbitrarily accepts one while condemning the other.

vate correspondence, and the Federalist Papers to ascertain what the Framers would have "understood," "recognized," and "expected." *Learning Resources, Inc.* v. *Trump*, 607 U. S. 229, 241 (2026); *Moore* v. *Harper*, 600 U. S. 1, 21–22, 26–27 (2023); *U. S. Term Limits, Inc.* v. *Thornton*, 514 U. S. 779, 789–822, 832–838, and nn. 23, 24 (1995).

Courts' traditional use of materials Congress generated while drafting and enacting statutes accords with the "natural" instincts of a judge attempting to "understand the context and purpose" of that law when the text is subject to more than one interpretation. Breyer, 65 S. Cal. L. Rev., at 848. But consulting the legislative record is not just informative. Doing this also serves a vital separation-of-powers function rooted in the structure of our democratic system. As the majority emphasizes from the get-go, "Congress, not the Judiciary, decides" the law. *Ante*, at 611; see also *Brown* v. *United States*, 8 Cranch 110, 128–129 (1814) ("[A]ll . . . questions of policy [are] proper for the consideration of a department which can modify it at will; not for the consideration of a department which can pursue only the law as it is written"). Using legislative history helps prevent judges who are dutybound to interpret Congress's laws from making them instead.

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This means that those who find it inappropriate for courts to use legislative history must grapple with the potential consequences of the resulting void. What interest does it really serve to blind ourselves to the congressional record when we interpret Congress's handiwork? Who benefits from that? "Why, of all the many tools judges use to help interpret unclear statutory language (context, tradition, custom, precedent, dictionary meanings, administrability, and so on), should they not use *this* one?" Breyer, 65 S. Cal. L. Rev., at 861 (emphasis added).

There is no flattering or straightforward answer to such questions. That is probably why, for the better part of the 20th century—including after the Court "swor[e] off the

habit of venturing beyond Congress's intent" in 1975, see *Sandoval*, 532 U. S., at 287 (citing *Cort* v. *Ash*, 422 U. S. 66, 78 (1975))—courts consulted the legislative history when called upon to determine Congress's intent to authorize a private right of action. See *Northwest Airlines, Inc.* v. *Transport Workers*, 451 U. S. 77, 91 (1981) (listing, as the relevant considerations in determining "whether Congress intended to create" an implied private right of action, "the language of the statute itself, its legislative history, the underlying purpose and structure of the statutory scheme, and the likelihood that Congress intended to supersede or to supplement existing state remedies"). By my count, the Court relied on legislative history to help determine Congress's intent in more than a dozen implied-private-right-of-action cases after 1975.[8] And why shouldn't we have done so? In this area, all agree that "[s]tatutory intent . . . is determinative." *Sandoval*, 532 U. S., at 286.

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[8] *Morse* v. *Republican Party of Va.*, 517 U. S. 186, 232–234 (1996) (opinion of Stevens, J., joined by Ginsburg, J.); *id.*, at 240 (Breyer, J., joined by O'Connor and Souter, JJ., concurring in judgment); *Central Bank of Denver, N. A.* v. *First Interstate Bank of Denver, N. A.*, 511 U. S. 164, 189 (1994); *Virginia Bankshares, Inc.* v. *Sandberg*, 501 U. S. 1083, 1103–1104 (1991); *Thompson* v. *Thompson*, 484 U. S. 174, 179, 183–187 (1988); *Wright* v. *Roanoke Redevelopment and Housing Authority*, 479 U. S. 418, 425, and n. 7 (1987); *Daily Income Fund, Inc.* v. *Fox*, 464 U. S. 523, 536–539 (1984); *Guardians Assn.* v. *Civil Serv. Comm'n of New York City*, 463 U. S. 582, 599–602 (1983) (opinion of White, J., joined by Rehnquist, J.); *id.*, at 609 (Powell, J., joined by Burger, C. J., concurring in judgment); *Jackson Transit Authority* v. *Transit Union*, 457 U. S. 15, 24–28 (1982); *Merrill Lynch, Pierce, Fenner & Smith, Inc.* v. *Curran*, 456 U. S. 353, 382–388 (1982); *Middlesex County Sewerage Authority* v. *National Sea Clammers Assn.*, 453 U. S. 1, 17–18, and n. 27 (1981); *California* v. *Sierra Club*, 451 U. S. 287, 294–296 (1981); *Northwest Airlines, Inc.* v. *Transport Workers*, 451 U. S. 77, 94–95 (1981); *Universities Research Assn., Inc.* v. *Coutu*, 450 U. S. 754, 773–781 (1981); *TAMA*, 444 U. S. 11, 17–18 (1979); *Touche Ross & Co.* v. *Redington*, 442 U. S. 560, 571, n. 11 (1979); *Cannon* v. *University of Chicago*, 441 U. S. 677, 686, n. 7, 694–701 (1979); *Chrysler Corp.* v. *Brown*, 441 U. S. 281, 293–294 (1979).

To be sure, "legislative history is not the law." *Epic Systems Corp.* v. *Lewis*, 584 U. S. 497, 523 (2018). And no one is arguing that legislative history should trump unambiguous statutory text. But when a statute's text needs clarification, discarding legislative history turns the Court's assessment of Congress's intent into a transparently empty gesture. Even worse, it inappropriately elevates the Justices' own power by promoting our views about the "best" policy call. But Congress is not our rival; courts are not in the policymaking arena at all. So we should leave judgment calls about best policies to the Legislature, which routinely creates an illuminating record as part of its legislative process. "Respecting Congress's work product not only makes it more likely that courts will interpret the law in a manner consistent with legislative purposes, but also . . . that Congress will perceive the courts as productive partners rather than as meddlers substituting their own preferences for that of the legislative branch." R. Katzmann, Judging Statutes 10 (2014) (Katzmann).

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Consistent with the "classic criticism" of courts' use of legislative history, the majority's aversion to the employment of this interpretive tool appears to stem from an intuition that "Congress's subjective intent [is] [un]knowable." *Ante*, at 621. But it is hard to take that criticism seriously when the modern Court nonetheless routinely interprets statutes by speculating about what Congress must have wanted. See, *e. g.*, *Learning Resources*, 607 U. S., at 243 (plurality opinion) (drawing from a "practical understanding of legislative intent" that "Congress would not have delegated highly consequential power through ambiguous language" (internal quotation marks omitted)).[9]

[9] See also, *e. g.*, *Biden* v. *Nebraska*, 600 U. S. 477, 506 (2023) (applying the major questions doctrine to conclude that "'Congress would likely have intended for itself'" the task of making "'[t]he basic and consequential tradeoffs' inherent in a mass debt cancellation program" (quoting *West*

Indeed, in this very case the majority purports to know what "Congress intended" when it inserted an "express provision of one method of enforcement" in the ICA. *Ante*, at 617 (internal quotation marks and alterations omitted). It appears, then, that our disagreement today is really about the *tools* courts use to ascertain congressional intent, not its importance or knowability. See *ante*, at 621, n. 5 (characterizing congressional intent drawn from text as "objectified intent" (internal quotation marks omitted)).

On that point, the committee reports that accompany federal statutes are a first-rate indicator of Congress's intent. Committee reports are not a randomly generated collection of Member reflections; these official documents provide crucial information about proposed legislation and thus play a significant role in the legislative process itself. "Committee reports are generally circulated at least two calendar days before legislation is considered on the floor" in order to explain "a bill's context, purposes, policy implications, and details" to Members of Congress and their staffs. Katzmann 20, 130–131, n. 62 (citing A. LaRue, Senate Manual Containing the Standing Rules, Orders, Laws, and Resolutions Affecting the Business of the United States Senate, S. Doc. No. 107–1, p. 17 (2001)). The reports therefore serve as the final sales pitch for a bill, and "there is evidence that lawmakers themselves pay more attention to these reports than a statute's text to understand the statute's purpose and meaning." *Learning Resources, Inc.*, 607 U. S., at 310 (JACKSON, J., concurring in part and concurring in judgment) (citing A. Gluck & L. Bressman, Statutory Interpretation From the Inside—An Empirical Study of Congressional Drafting, Dele-

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Virginia v. *EPA*, 597 U. S. 697, 730 (2022))); 600 U. S., at 521 (BARRETT, J., concurring) (relying on the absence of "context clues" to determine whether "Congress would have delegated the power to the agency"); *FDA* v. *Brown & Williamson Tobacco Corp.*, 529 U. S. 120, 160 (2000) ("Congress could not have intended to delegate a decision of such economic and political significance to an agency in so cryptic a fashion").

gation, and the Canons: Part I, 65 Stan. L. Rev. 901, 965–966, 968–969 (2013)); see also Katzmann 37–38. Consequently, quite far from being irrelevant, committee reports often contain the most accurate encapsulation of the legislation's intended meaning.

Given this, it is wrong to suggest that a court's reference to and reliance on statements in committee reports is like picking out friends at a crowded party. *Ante*, at 621. The better analogy is to consulting the user's manual the manufacturer writes to guide piecing together its product. Cf. Gluck & Bressman, 65 Stan. L. Rev., at 978 (explaining that the reports have "internal institutional and implementation-related functions").

Justices have traditionally understood this relatively simple proposition. "'In surveying legislative history we have repeatedly stated that the authoritative source for finding the Legislature's intent lies in the Committee Reports on the bill, which represent the considered and collective understanding of those Congressmen involved in drafting and studying proposed legislation.'" *Digital Realty Trust, Inc.* v. *Somers*, 583 U. S. 149, 170 (2018) (SOTOMAYOR, J., concurring) (quoting *Garcia* v. *United States*, 469 U. S. 70, 76 (1984); alteration and some internal quotation marks omitted). Even Justice Robert Jackson—yes, the very one whose teaching serves as the coda to the majority's denunciation of legislative history, see *ante*, at 624—recognized that reliance on legislative history is "justified where the face of the Act is inescapably ambiguous, and then . . . we should not go beyond Committee reports, which presumably are well considered and carefully prepared." *Schwegmann Brothers* v. *Calvert Distillers Corp.*, 341 U. S. 384, 395 (1951) (concurring opinion).[10]

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[10] There's more. See *Simpson* v. *United States*, 435 U. S. 6, 17 (1978) (Rehnquist, J., dissenting) ("The report of a joint conference committee of both Houses of Congress, for example, or the report of a Senate or House committee, is accorded a good deal more weight than the remarks even of

The majority's failure—or refusal—to accept this might stem from what commentators have called a prevailing "academic contempt for Congress." V. Nourse, A Decision Theory of Statutory Interpretation: Legislative History by the Rules, 122 Yale L. J. 70, 142 (2012). Academics may think what they wish of Congress; this Court's jurisprudence ought not be grounded in such contempt. For an institution that purports to "follow the law as written by Congress," *Leal Garcia* v. *Texas*, 564 U. S. 940, 942 (2011) (*per curiam*), it is strange, to say the least, that we give "scant consideration" to "how Congress actually functions." Katzmann 8. The Court should at least endeavor to understand and accurately assess the legislative process from which Section 47(b) arises—so as to better "separate the useful from the misleading," Gluck & Bressman, 65 Stan. L. Rev., at 989—before discarding "the views of the 42-member House Committee on Interstate and Foreign Commerce," *ante*, at 623.

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In his now-famous dissent in *Cannon* v. *University of Chicago*, 441 U. S. 677 (1979), Justice Powell admonished the Court for abandoning "the intent of Congress" and "substitut[ing] its own views as to the desirability of private enforcement." *Id.*, at 740. So it is here. The Court today turns a deaf ear to the unified call of text, statutory struc-

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the sponsor of a particular portion of a bill on the floor of the chamber"); *Bank One Chicago, N. A.* v. *Midwest Bank & Trust Co.*, 516 U. S. 264, 276 (1996) (Stevens, J., concurring) ("Legislators, like other busy people, often depend on the judgment of trusted colleagues when discharging their official responsibilities. . . . Representatives and Senators may appropriately rely on the views of the committee members in casting their votes"); *Commissioner* v. *Acker*, 361 U. S. 87, 94 (1959) (Frankfurter, J., dissenting) ("Congress can be the glossator of the words it legislatively uses either by writing its desired meaning, however odd, into the text of its enactment, or by a contemporaneously authoritative explanation accompanying a statute. The most authoritative form of such explanation is a congressional report defining the scope and meaning of proposed legislation").

ture, and history, and substitutes its own views as to the undesirability of private enforcement. Justice Powell's warning remains unheeded, to the detriment of Congress and the private parties it sought to empower.

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